

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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ESTATE OF RAMARLEY GRAHAM, BY CONSTANCE
MALCOLM, ADMINISTRATRIX, PATRICIA HARTLEY,
CC, A MINOR BY IS MOTHER
AND NATURAL GUARDIAN CONSTANCE MALCOLM,
FRANCLOT GRAHAM, AND CONSTANCE MALCOLM,

**ORDER OF
COMPROMISE**

13 CV 2015 (P.K.C)

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICECOMMISSIONER
RAYMOND KELLY, NYPD, DEPUTY INSPECTOR
PAUL DEENTREMONT, INDIVIDUALLY AND AS
SUPERVISING POLICE OFFICER, P.O. RICHARD
HASTE SHIELD# 20875, 47TH PCT., INDIVIDUALLY
AND AS POLICE OFFICER, P.O. TYRONE HORNE,
SHIELD 14885, INDIVIDUALLY AND AS POLICE
OFFICER, SGT SCOTT MORRIS SHIELD # 953,
INDIVIDUALLY AND AS POLICE OFFICER,
POLICE OFFICER ANDREW JARVIS, SHIELD# 7775,
INDIVIDUALLY AND AS POLICE OFFICER, POLICE
OFFICER JANE DOE, IDENTITY PRESENTLY
UNKNOWN, 47TH PCT, SNEU UNIT, INDIVIDUALLY
AND AS POLICE OFFICER, AND POLICE OFFICERS
JOHN DOES 1-10, IDENTITIESPRESENTLY UNKNOWN,
EACH INDIVIDUALLY AND AS POLICE OFFICER.

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Defendant(s).

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Upon due deliberation and consideration of the issues and claims in the instant litigation, the discussions related to settlement in resolution of this case, and upon the agreement of the Administratrix for the Estate of Ramarley Graham and parent and guardian of the minor plaintiff CC, and it appearing that the Estate's and CC's best interest would be served by approval of the proposed compromised in settlement, now on this Motion of Royce Russell, Esq. attorney at the law firm of Emdin & Russell, LLP on behalf of the Estate of Ramarley Graham and minor plaintiff CC herein it is hereby;

ORDERED that the Administratrix of the Estate of Ramarley Graham, Constance Malcolm, the mother of Ramarley Graham and CC is authorized and empowered, in the interest

of the Estate of Ramarley Graham to settle and compromise the Estate and CC claims for money damages as described and set forth in this litigation for the sum of two million and nine hundred and fifty (\$2,950,000.00), dollars in reference to the Estate of Ramarley Graham, five hundred thousand, (\$500,000.00), dollars on behalf of CC, four hundred and fifty thousand, (\$450,000.00), dollars to Patricia Hartley and forty thousand, (\$40,000.00), dollars to Constance Malcolm and it is further,

ORDERED, that the restrictions contained in Letters of Administration granted by surrogate's Court, Bronx County, are hereby modified to permit the acts required to consummate this settlement, and it is further,

ORDERED, that the making and filing of a bond be dispensed with and, conditioned upon compliance with the terms of this Order, the Administrix is authorized and empowered to make and execute all necessary papers to effectuate general releases to the defendants herein and it is further,

ORDRED, that from the sum of two million and nine hundred and fifty thousand, (\$2,950,000.00), dollars settlement paid by the City of New York to the Estate of Ramarley Graham and Counsel shall be paid as follows:

- A. The amount one million four hundred and seventy-five thousand, (\$1,475,000.00), dollars shall be paid to Emdin & Russell, LLP, on behalf of plaintiff Constance Malcolm. Emdin & Russell, LLP., shall then form said settlement amount, deduct expenses/disbursements and attorney fees per executed retainer agreement and is further,
- B. The amount one million four hundred and seventy-five thousand, (\$1,475,000.00), dollars shall be paid to Emdin & Russell, LLP, on behalf of plaintiff Franciot Graham. Emdin & Russell, LLP., shall then form said settlement amount, deduct expenses/disbursements and attorney fees per executed retainer agreement and is further,

ORDERED, that the parent and natural guardian of plaintiff CC, Constance Malcolm is authorized and empowered, in the interest of her child CC, born ___/___/05, to settle and compromise CC claims for money damages as discussed and set forth in this litigation for the sum of five hundred thousand (\$500,000.00) dollars, and it is further,

ORDERED, that from the sum of five hundred thousand (\$500,000.00) dollars shall be paid by the City of New York on behalf of the minor plaintiff in full settlement of the matter, and it is further,

ORDERED, that the five hundred thousand (\$500,000.00) dollars settlement paid by the City of New York to CC and Counsel, shall be paid as follows:

A. A portion shall be paid to Emdin & Russell, LLP as attorney's fee and costs as set forth in their Retainer Agreement which calls for 33.33 % payment for attorney fees and payments of expenses/disbursements are dedicated.

B. The remainder of the settlement on behalf of CC paid to Constance Malcolm, ^{as Trustee} ~~CC's~~ *of the C C Living Trust* mother on his behalf, and it is further,

the corpus of the trust
ORDERED, that said remainder of the settlement to be paid by the City of New York to ~~minor plaintiff CC as settlement of the above matter to~~ be deposited in an interest bearing trust account at Ridgewood Savings Bank, a member of the FDIC, located in the State of New York and authorized to transact business within the State of New York, ^{for which said trust account is} ~~govern by the April 7, 2015 executed Irrevocable Trust Agreement, to be held by plaintiff~~ *Declaration of* ~~and as~~ *exclusive* ~~mother Constance Malcolm~~ for the benefit of CC until his TWENTY-FIRST, (21ST), birthday ___/___/27 when it shall be paid out to him only, or as further ordered by this honorable Court, and it is further,

and held *opened in the name of Constance Malcolm, as Trustee of the C C Living Trust*
ORDRED, that the sum of four hundred and fifty thousand (\$450,000.00), dollars settlement paid by the City of New York to Patricia Hartley and Counsel shall be paid as follows:

C. The amount four hundred and fifty thousand (\$450,000.00), dollars shall be paid to

Emdin & Russell, LLP, on behalf of plaintiff Patricia Hartley. Emdin & Russell, LLP., shall then form said settlement amount, deduct expenses/disbursements and attorney fees per executed retainer agreement and is further,

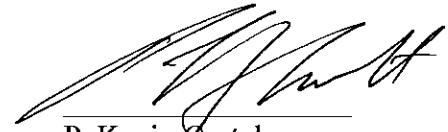
ORDERED, that the sum of forty thousand (\$40,000.00), dollars settlement paid by the City of New York to Constance Malcolm and Counsel shall be paid as follows:

- A. The amount forty thousand (\$40,000.00), dollars shall be paid to Emdin & Russell, LLP, on behalf of plaintiff Constance Malcolm. Emdin & Russell, LLP., shall then form said settlement amount, deduct expenses/disbursements and attorney fees per executed retainer agreement and is further,

ORDERED, that this Court retains jurisdiction of this action for enforcing this compromise order and for enforcing the trust of the underlying settlement, and for entering this compromise order directing the deposition of funds.

The case is closed and all matters are terminated

May 1
Dated: ~~April~~, 2015
New York, New York


P. Kevin Castel
United States District Judge